Legal aspects of IT security
Master in cybersecurity

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UNIVERSITÉ DE NAMUR

Cybersecurity and criminal proceedings

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Summary

I. Preliminary concepts
II. Focus on some criminal investigation acts
III. Evidence in criminal matters

I. Preliminary concepts

1. What is Criminal proceedings?
2. The pre-trial phase of criminal proceedings
3. The players in criminal proceedings

I. Preliminary concepts
1. What is Criminal proceedings?

Criminal proceedings= « *all the rules relating to the investigation of offences, their perpetrators and their trial* »

Rules relating to :

- the various stages of criminal proceedings
- Jurisdiction and operation of judicial bodies in criminal matters

I. Preliminary concepts
1. What is Criminal proceedings?

3 phases of the criminal trial :

- Pre-trial phase of the criminal trial*
- Judgement phase
- Sentence enforcement phase

I. Preliminary concepts
2. The pre-trial phase of criminal proceedings

= “investigation phase”

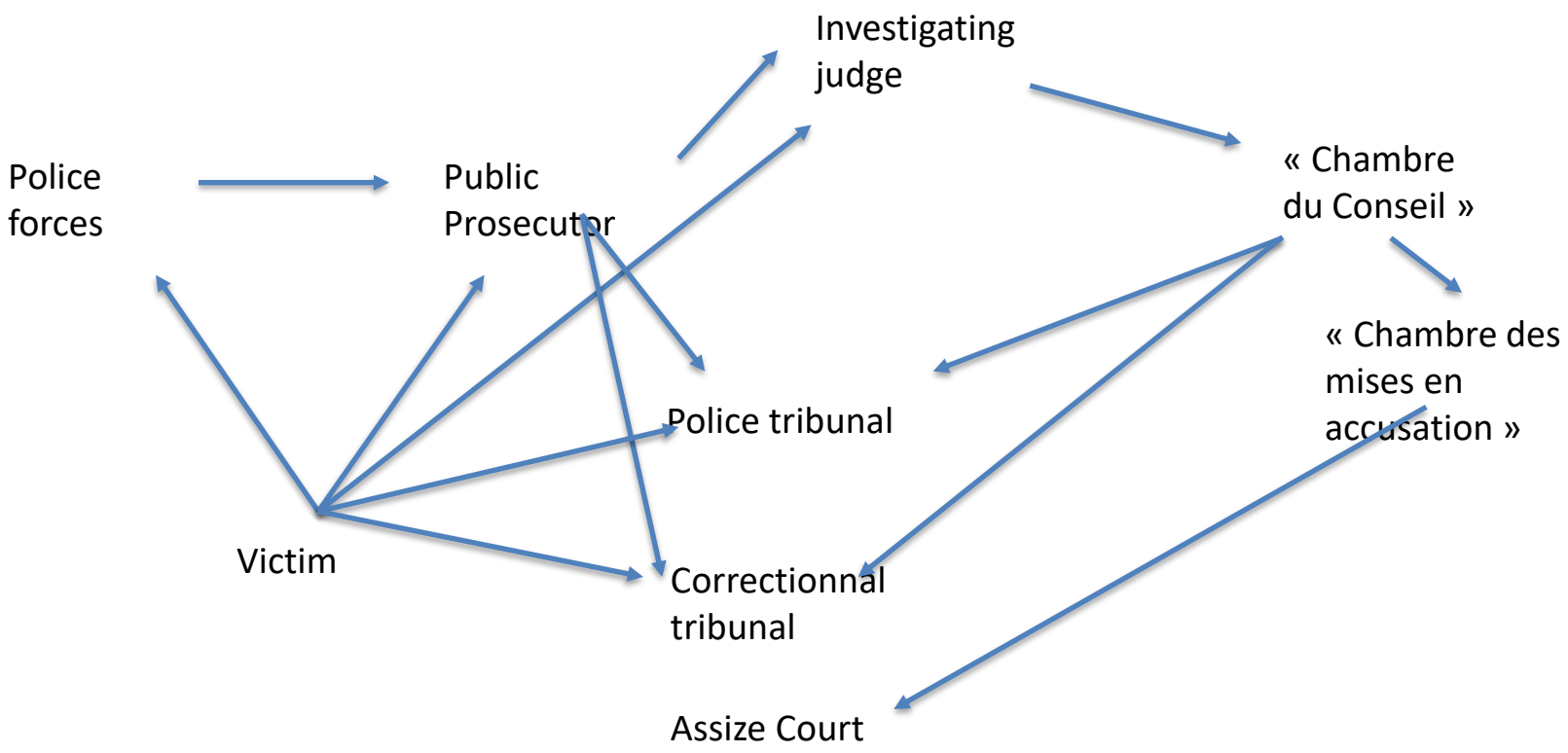
Several characteristics :

- Written
- Unilateral
- Confidentiality of information and investigation

2 phases :

- Information
- Instruction

I. Preliminary concepts
3. The players in criminal proceedings



II. Focus on some criminal investigation acts

1. Home visits and searches
2. Discreet visual checks
3. Seizures
4. Internet infiltration
5. (Tele)communications searches

II. Focus on some criminal investigation acts
1. Home visits and searches

	PP	IJ
Legal basis	Art. 89bis CICR + Art. 1er Loi 7 juin 1969	
Concept	«a coercive measure by which the competent authority, in the cases provided for by law and in accordance with the rules it prescribes, enters a place protected by the inviolability of the home* in order to search for evidence and seize exhibits of a crime or misdemeanour ».	
Conditions of application	serious indications that the offence is punishable by a minimum of 1 year in prison (proportionality)	
Competent authority	ONLY in cases of flagrante offences	Principle : only one competent authority

II. Focus on some criminal investigation acts
1. Home visits and searches

Concept of “home” :

‘*A place, including its own outbuildings enclosed within it, occupied by a person with a view to establishing there his actual dwelling or residence and where he is entitled, as such, to respect for his intimacy, tranquillity and more generally his private life*’ (Cass., 20 December 2000).

‘*Place, with its annexes, which is not public and which serves as dwelling, residence or place of activity to a person who shelters there a sphere of his private life*’.

II. Focus on some criminal investigation acts
1. Home visits and searches

Distinction between three categories of places (variable protection) :

- Home within the meaning of Article 15C°
- Other private places
- Public places

II. Focus on some criminal investigation acts
1. Home visits and searches

	PP	IJ
Competent authority	ONLY : - Cases of flagrante offences - Consent or requisition of the person enjoying the place - Call from the place - Fires, floods, disasters and serious threats to life and limb - Places accessible to the public - Specific laws	Principle : only one competent authority

II. Focus on some criminal investigation acts
1. Home visits and searches

	PP	IJ
Conditions of application	- Prior finding: sufficiently serious indications that an offence has been committed - Time of search (Act of 7 June 1969, article 1) Principle: search prohibited between 9pm and 5am EXCEPT in cases of flagrante offences, calls from the place, places open to the public, when certain offences are involved, etc. - Inviolability of certain places and special cases: diplomats, journalists, members of parliament, persons bound by professional secrecy, etc.	

II. Focus on some criminal investigation acts
2. Discreet visual checks

	PP	IJ
Legal basis	Art. 46*quinquies* et 89*ter* CICR	
Concept	« *a measure by which the PP or IJ authorises the police to enter a private place at any time and to open closed objects found there, without the knowledge or consent of the owner or occupier* » Limited purpose: - To inspect places and ascertain whether there are any items liable to seizure - Gather evidence of the presence of things liable to seizure - Install, repair or remove a technical observation device - Replace objects removed	

II. Focus on some criminal investigation acts
2. Discreet visual checks

	PP	IJ
Conditions of application	- Precise indications of things likely to be seized and/or to constitute evidence or places used by suspects - Offence covered by Article 90ter CICR or part of a criminal organisation (proportionality) - Other means of investigation do not appear to be sufficient to establish the truth (subsidiarity) - Written, reasoned decision (EXCEPT in emergencies)	
Competent authority	ONLY : -Private place other than a home -Private place other than the professional places or residence of a lawyer or doctor	Principle : only one competent authority

II. Focus on some criminal investigation acts
3. Seizures

- **Concept and purpose**

Seizure = "*a precautionary measure, taken in the context of an information, investigation, special enquiry into property benefits or criminal investigation, involving the removal of property from the free disposal of its owner or possessor and its direct or indirect placing under the control of the judicial authorities with a view to its subsequent production before the courts or its confiscation*"

II. Focus on some criminal investigation acts
3. Seizures

- **Concept and purpose**

- Things that can be used to establish the truth
- Things covered by article 42 of the Criminal Code
- Seizure by equivalent
- Seizure of additional property benefits resulting from the offence or identical acts, of property and assets substituted for them and of the income from these substituted benefits
- Assets of a criminal organization
- Specific laws

II. Focus on some criminal investigation acts
3. Seizures

- **Forms**

Seizure report, signed by the distrainee

Seizure of debts

Seizure of property

Seizure of data stored in a computer system

II. Focus on some criminal investigation acts
3. Seizures

- **« Référé pénal »**

Person injured by an act of information or investigation relating to their property

Reasoned request

Refusal by the PP or IJ on 4 grounds

Right of appeal

II. Focus on some criminal investigation acts
4. Internet infiltration

	PP	IJ
Legal basis	Art. 46*sexies* CICR	
Concept	« *maintaining contact, possibly under a fictitious identity, on the Internet with one or more persons in respect of whom there are serious indications that they are committing or would commit offences punishable by a principal correctional sentence of one year or more* »	

II. Focus on some criminal investigation acts
4. Internet infiltration

	PP	IJ
Conditions of application	-If the needs of the investigation so require (condition of necessity) -If other means of investigation do not appear to be sufficient to establish the truth (condition of subsidiarity) -If technical means are used, only if there are serious indications that the offences are likely to result in a principal correctional sentence of at least one year (condition of proportionality). Duration: 3 months (with possibility of extension) Procedure: - Authorisation from the PP (who may modify or add to it, giving reasons) - Detailed reports by the OPJ placed in the confidential file - Watered-down V-P placed in the law enforcement file	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

Several measures concerned:

- Identification of the user of an electronic communications service
- Tracking and tracing of electronic communications
- Interception of communications not accessible to the public or data from a computer system
- Searching a computer system

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Identification of the user of an electronic communications service**

	PP	IJ
Legal basis	Art. 46*bis* CICR	
Concept	Aims to : - Identify the subscriber or habitual user of a means of electronic communication - Communicate the identification of electronic communication services habitually used by a specific person or to which that person subscribes	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Identification of the user of an electronic communications service**

	PP	IJ
Conditions of application	-Subsidiary to any other duty of investigation -Proportional in relation to respect for privacy and communication and identification limited to 6 months prior to the decision for offences punishable by < 1 year's imprisonment in writing, with reasons, in advance EXCEPT in cases of extreme urgency	
Competent authority	Ident competence	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Tracking and tracing of electronic communications**

	PP	IJ
Legal basis	Art. 88*bis* CICR	
Concept	-Locating traffic data for communications media -Locating the origin or destination of electronic communications	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Tracking and tracing of electronic communications**

	PP	IJ
Conditions of application	-necessary to establish the truth -serious indications that the offences are likely to result in a principal correctional sentence of one year or a heavier penalty -Subsidiary to any other investigative duty -Proportional to respect for privacy Duration: 2 months with the possibility of renewal Procedure: - Reasoned order - Special case of communications from lawyers and doctors	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Tracking and tracing of electronic communications**

	PP	IJ
Competent authority	ONLY in three situations: - in the event of flagrante offence IF : Offence covered by article 90ter ICRC Confirmation by the IJ within 24 hours (except terrorist offences, hostage-taking and illegal detention or extortion) - Terrorist offence - 2 electronic communications offences	Principle : only one competent authority

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Interception of communications not accessible to the public or data from a computer system**

	PP	IJ
Legal basis	Art. 90*ter* CICR	
Concept	Purpose: to search for data that could help establish the truth Additional methods: enter a home, a private place or a computer system; temporarily remove all protection from the computer systems concerned and install technical devices in the systems concerned. Target: private communications of suspects on the basis of specific clues, means of (tele)communication regularly used by these suspects, places frequented by a suspect, persons presumed to be in communication with suspects	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Interception of communications not accessible to the public or data from a computer system**

! Intentionally using any device to intercept or cause to be intercepted, take cognisance of or cause to be taken cognisance of, record or cause to be recorded communications not accessible to the public, to which one does not take part, without the consent of all the participants in these communications = criminal offence (C. pén. 1867, articles 259*bis* and 314*bis*)

-> strict conditions and procedure

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Interception of communications not accessible to the public or data from a computer system**

	PP	IJ
Conditions of application	- This measure may only be ordered in exceptional cases, when the needs of the investigation so require [...] and if other means of investigation are not sufficient to establish the truth (subsidiarity) - if there are serious indications that it concerns an offence referred to in Article 90ter, paragraph 2 CICR(proportionality). Duration: one month, with the possibility of renewal (C.I.Cr., articles 90quater, §1, 4° and 90quinquies, para. 1)	

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Interception of communications not accessible to the public or data from a computer system**

	PP	IJ
Competent authority	ONLY in cases of flagrante offence of : - Terrorist offence - Hostage taking - Unlawful detention or extortion	Principle : only one competent authority

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Interception of communications not accessible to the public or data from a computer system**

Procedure

- Written, reasoned authorisation given to the PP
- OPJ reports to the IJ every 5 days
- Possibility of joining documents to the file at a later date
- Full recording of the communications BUT initial sorting by the OPJ (transcription or reproduction of only relevant passages and indication of the subjects addressed for communications deemed irrelevant)
- Final selection by the IJ, who may order additional transcriptions or reproductions

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Interception of communications not accessible to the public or data from a computer system**

Right to consult recordings (CIC, Article 90 septies, §6)

- Right of the accused, the defendant and the plaintiff to receive, on simple request, a copy of the entire recording (without being able to demand a transcript) of communications of which certain passages deemed relevant have been transcribed and entered in the proceedings

- Right for the parties and persons whose communications have been recorded to ask the IJ to consult the recordings

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Searching a computer system**

Distinction :

- Non-secret search
- Secret search

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Non-secret search**

	PP	IJ
Legal basis	Art. 39*bis* CICR	
Concept	= analysis of data stored* in a computer system that has been seized or is likely to be seized	
Competent authority	ONLY : - search in a seized computer system (§2, para. 1) - search in a computer system likely to be seized (§2, para. 2)	Only one competent for all other cases (§4) What about the extension of non-secret searches (Article 88ter ICRC)?*

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Non-secret search**

What about the non-secret search extension?

3 hypotheses :

- the extension of the search, begun in a computer system that is or may be subject to seizure, to another system that can be reached by connection and to which the person authorised to use the computer system that was the subject of the search has specific access/not specific access
- a search in a computer system whose medium cannot be seized and the extension of a search begun in this system to a remote computer system which can be reached by connection
- executing a search on a remote computer system from the police computer system

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Non-secret search**

PP or IJ may temporarily remove protection from the computer systems concerned and/or order the decryption of stored, processed or transmitted data

OPJ can order the preservation of data

II. Focus on some criminal investigation acts
5. (Tele)communications searches

- **Secret search**

-> See Article 90*ter* C.I.Cr. for the interception of communications not accessible to the public or data from a computer system.

III. Evidence in criminal matters

-> Focus on the issue of regularity of evidence

III. Evidence in criminal matters

Evolution of theories :

- Traditional theory : removal of irregular evidence from the file and invalidation of acts that are a direct consequence of it
- "Antigone" case-law : removal of irregular evidence ONLY if :

- Violation of a form prescribed on pain of nullity
- Infringement of the reliability of evidence
- Infringement of the right to a fair trial (assessed as a whole)

- Article 32 T.P.C.P.P. : "*Evidence obtained in an irregular manner may be declared null and void only if :*

- *compliance with the formal conditions concerned is prescribed on pain of nullity, or;*
- *the irregularity has affected the reliability of the evidence; or*
- *the use of the evidence is contrary to the right to a fair trial*"

- Draft reform of criminal proceedings : reversal of the principle

Any questions?

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Thanks for your attention!

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